



**DEPARTMENT OF DEFENSE  
WASHINGTON HEADQUARTERS SERVICES  
1155 DEFENSE PENTAGON  
WASHINGTON, DC 20301-1155**



Control No. WHS-2025-1621-JA

March 28, 2025

**JUSTIFICATION FOR  
OTHER THAN FULL AND OPEN COMPETITION (JOFOC)  
UNDER FEDERAL ACQUISITION REGULATION FAR SUBPART 6.3  
HQ0034-24-C-0050 Booz Allen Hamilton (BAH)**

1. **AGENCY AND CONTRACTING ACTIVITY:** The Department of Defense (DoD), Washington Headquarters Services, Acquisition Directorate (WHS/AD), Enterprise Research & Engineer Directorate (ERED), Technical Analysis Branch (TAB) on behalf of the Office of the Under Secretary of Defense for Intelligence and Security (OUSD(I&S)) Executive Directorate (EXDIR).
2. **DESCRIPTION OF ACTION:** OUSD (I&S) EXDIR has a continuing need for Professional, Technical & Administrative Support Services provided under contract no. HQ0034-24-C-0050, which was awarded to Booz Allen Hamilton Corporation (BAH). The current contract expires March 27, 2025, and the Government intends to extend the current contract period of performance (POP) for continuity of services. The Government recently awarded a competitive long-term; Blanket Purchase Agreement (BPA) on February 14, 2025, and the concurrent Call Orders EXDIR HQ0034-24-F-0704 and Sensitive Activities & Special Programs (SASP) HQ0034-24-F-0705, were awarded on February 20, 2025. However, on March 6, 2025, a protest was filed against the two Call Order awards resulting in a 100-day stop work order. Therefore, an extension will be required to continue services while the Government works to resolve the protest and ultimately resolicits the Call Orders amongst the Blanket Purchase Agreement (BPA) holders, if necessary. WHS/AD intends to award the follow-on contract by July 2025. This extension will utilize firm-fixed-price (FFP) and time and materials (T&M) Contract Line-Item Numbers (CLINs), with a total estimated value of \$1,631,202.61 using fiscal year (FY) 2025 Operation and Maintenance (O&M) Funds. The POP will be from March 28, 2025, to July 27, 2025.
3. **DESCRIPTION OF SUPPLIES/SERVICES:** To accomplish the OUSD(I&S)'s objectives, the EXDIR requires customer focused technical, professional, administrative, management, policy, and operational support capabilities that enable the day-to-day operations of the OUSD(I&S)'s mission. The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform services as defined in the Performance Work Statement (PWS). The Contractor's performance and deliverables shall provide wide ranging technical and administrative support at the direction of the Executive Director.

| <b>Performance Period</b> | <b>Performance Period Date</b> | <b>Amount</b>  |
|---------------------------|--------------------------------|----------------|
| Extension Period          | March 28, 2025 – July 27, 2025 | \$1,631,202.61 |

Controlled by: WHS/AD  
CUI Category(ies): SP-PROCURE  
Limited Dissemination Control: FEDCON  
POC: Syreeta A. Donald, [whs.ncr.ad.mbx.eosd-tab-branch@mail.mil](mailto:whs.ncr.ad.mbx.eosd-tab-branch@mail.mil)

4. **AUTHORITY CITED:** This action is authorized under provisions of 10 U.S.C. 3204(a)(1), FAR 6.302-1(a)(2)(iii)(B), "Only one responsible source and no other supplies or services will satisfy agency requirements." More specifically, *"For DoD...services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements."*
5. **REASON FOR AUTHORITY CITED:** EXDIR requires continued, support from the incumbent to fulfill its requirement for professional, technical & administrative support. Only one source is capable of providing the supplies or services required at the level of EXDIR requires continued, support from the incumbent in order to fulfill its requirement for professional, technical & administrative support. If not, the Government would experience unacceptable delays in providing the necessary support for EXDIR and subsequently within the I&S Enterprise. This action is necessitated by a formal bid protest received in response to the intended award for technical, professional, administrative, management, policy, and operational support under a newly awarded Blanket Purchase Agreement (BPA) for OUSD(I&S). The BPA was awarded on February 14, 2025, and the protested EXDIR and SASP Call Orders were awarded on February 20, 2025, with a transition-in start date of March 13, 2025. This current contract is in a FAR 52.217-8 extension and expires on March 27, 2025. Due to the anticipated time required to resolve this protest through the formal process, a bridge contract with the incumbent vendor is critical to avoiding any disruption in essential support services.

In addition, failure to extend BAH's support would result in substantial duplication of cost to the Government. The substantial duplication of cost is estimated at \$721,051.15 and includes approximately 6,240 additional labor hours or more for approximately more than twenty-one (21) full time equivalents (FTE's) needed from another vendor to provide a support service to OUSD(I&S) which is not expected to be recovered through competition. The Government would incur significant onboarding, training, and knowledge transfer duplication of costs to reach the current incumbent's level of expertise. The Government estimates the following duplication of cost breakdown:

**Onboarding and Training:** \$104,500.17 based on a week of onboarding costs which consists of in-doc with security, updating credentials on Common Access Card (CAC), Pentagon Access, and network accounts being processed.

**Knowledge Transfer:** \$ 209,000.33 based on estimated 80 hours required for current staff to document work and transfer knowledge.

**Opportunity Cost of Delay:** \$407,550.65 assuming a 30-day lapse in service to compete the award, based on financial risk due to delayed ability to address national regulatory issues arising from key U.S. regulatory bodies, executive branch agencies. The ability to provide research and advice to develop and advance strategy that addresses the evolving international regulatory environment.

Awarding services to a contractor other than BAH would involve multiple transitions between potential vendors (incumbent vendor, temporary vendor, and new long-term vendor) which involves the Government paying multiple vendors for the transition of different contracts for an estimated \$721,051.15 for continuous support. These multiple transitions involve additional resources and unnecessary costs for the Government, and can cause unacceptable risks, delays and interruptions in services. To accomplish the work within the allotted schedule, the follow-on effort must seamlessly follow the initial effort to maintain continuity of services. Additionally, if a new contractor were to transition into the environment, it would cause a 21-30-day gap in support due to the amount of time that it would take to bring on new personnel, conduct the appropriate security indoctrination procedures, issue new accounts, and grant accesses to respective applications. These 30-days would not account for any ramp up or training time that would be needed, that would add another 15-30 days. This

sort of gap or work stoppage in support is unacceptable to continuity of EXDIR's mission. To maintain continuity of services, an extension of services is the most logical and cost-effective solution to the Government as a break in support would be detrimental.

In addition, while the Government works to resolve the protest, BAH will continue providing support on critical functions and activities for EXDIR such as coordinating with WHS Financial Management Directorate and other stakeholders on the president's budget for FY2026, ensuring ongoing personnel and operations security requirements are being met, and responding to short-fused manpower and personnel taskers and data calls. They will also continue providing support directly to the Under Secretary of Intelligence & Security in the areas of secure communications and facility support. A degradation in support directly to the Under Secretary is not acceptable.

More specifically, there are currently several ongoing initiatives where a break in continued service from BAH would disrupt critical progress being made as listed below:

***DEVELOPMENT OF PRESIDENT'S BUDGET AND PROGRAM OBJECTIVE***

***MEMORANDUM:*** EXDIR's Financial Management team is in the process of building the Intelligence and Security's (I&S) FY 2026 President's budget. There are new Executive Orders coming in daily regarding budget and planning actions that require tremendous attention to detail, historical knowledge and familiarity with data and stakeholders to respond with accuracy and context. These are critical, time-sensitive budget activities to which the BAH contractor team provides daily support.

***PERSONNEL SECURITY ACTIVITIES:*** EXDIR's security team is responsible for day-to-day personnel and physical security activities critical to the I&S mission. This security support involves the in-processing, onboarding, IT support, credentialing, and facility support for the incoming Under and Deputy Under Secretary. Their onboarding is anticipated to occur in May 2025, and it is critical that there is no gap in support during this time.

***MANPOWER AND PERSONNEL INITIATIVES:*** EXDIR's Manpower and Personnel team is in the process of responding to numerous Executive Orders and DOGE Efficiencies associated with Manpower and Personnel. These E.O.s and data calls are related to Deferred Resignation Program, DoD Hiring Freeze, Probationary Employee Status, and potential Reduction in Force. These items require immediate and timely action. The BAH contractor team provide direct and critical support to these initiatives. If a new contractor were to come in, it would create an untimely gap in support causing a 45–90-day delay in operations with additional impacts to larger OUSDI&S responsibilities. This would generate an unacceptable level of risk.

Based on the initiatives mentioned above, the existing BAH contract provides critical support to the daily operations of EXDIR. The BAH contract team are embedded with federal EXDIR staff and have current knowledge about a plethora of initiatives happening across the Department of Defense (DoD). The award of a four (4) month contract extension to BAH, prevents duplicative cost and unacceptable delays in fulfilling the operational objectives of the EXDIR. BAH's critical support is necessary to the I&S enterprise and avoids adverse impact on the initiatives, while the Government works to resolve the protest and ultimately resolicits the EXDIR and SASP Call Orders amongst the Blanket Purchase Agreement (BPA) holders, if necessary.

6. **EFFORTS TO OBTAIN COMPETITION:** Due to the urgent need to extend services to avoid a lapse in contractor support, the Government published a "Notice of Intent" (NOI) on SAM.GOV to notify industry of its intent to extend services on March 11, 2025, with a closing date of March 14, 2025. The NOI posted did not receive any responses.

7. **FAIR AND REASONABLE COST DETERMINATION:** The Contracting Officer (CO) determines that the anticipated prices will be fair and reasonable by using the techniques identified at FAR 15.404-1 “Proposal Analysis Techniques”, specifically FAR 15.404-1(b)(2)(ii) and FAR 15.404-1(b)(2)(v) to ensure award will be at fair and reasonable prices. In addition, the Government will compare proposed prices set forth by BAH to historical prices paid by the Government under the current contract, HQ0034-24-C-0050. The Government will also compare proposed prices with the Independent Government Cost Estimate (IGCE) prepared for the period of performance extension and request price reductions or discounts.
8. **MARKET RESEARCH:** Market Research has been limited to the NOI to sole source this action and was posted on SAM.gov as described in paragraph 6, above. WHS/AD will conduct an administrative modification to the existing contract to extend it in order to maintain continuity of support being provided to EXDIR. The contract extension is the most efficient and logical strategy and solution to the Government in order to avoid unacceptable delays in fulfilling the agency’s requirement and a potential gap in performance of critical services to EXDIR.
9. **OTHER FACTS:** Due to the irreparable damage that may result to SASP's mission should services be interrupted, a sole source contract extension will be negotiated with BAH. BAH has been critically instrumental to the success and continuation of the DoD mission.
10. **INTERESTED SOURCES:** To date, no other sources have expressed an interest, feedback, or challenges in writing and no bids or proposals have been received to the Notice of Intent” required by FAR 5.201, that was published on SAM.GOV to notify industry of its intent to extend services.
11. **ACTIONS TO INCREASE COMPETITION:** This requirement was initially competed with fair opportunity to the vendors deemed capable and eligible under the establishment of the WHS-AD OUSDI Enterprise multiple award BPA via the General Services Administration (GSA) Multiple Award Schedule (MAS) 8(a) Pool. However, due to a protest filed against the BPA’s EXDIR Call Order award made from the fair opportunity solicitation, and severe time constraints due to the protest being filed weeks before the end of the current bridge contract POP, the Government must restrict award consideration and implement an extension to BAH. Soliciting an open competition for a contract for these services will take at least 120 days based on the \$4 million contract value, which would cause a gap in services. EXDIR’s mission cannot afford any interruption of services or resultant gap in services to compete an additional contract during the protest. There could be irreparable damage to EXDIR's mission should services be interrupted and/or delayed.
12. Is this acquisition for a non-competitive follow-on acquisition previously awarded on a non-competitive basis?
  - ☒ Yes. A copy of the previous justification is attached. The actions to remove any barriers to competition cited on the previous justification ☒ were ☐ were not completed.
  - ☐ No. The original acquisition was conducted on a competitive basis.
  - ☐ Not Applicable. This is a new requirement.

**CERTIFICATION**

I, hereby, certify that the supporting data under my cognizance included in this justification are accurate and complete to the best of my knowledge and belief.

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Marcia Jones, Contracting Officer's Representative

3/28/2025

Date

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Syreeta Donald, Contracting Officer

Date

**CONCURRENCE**

This justification is, approved.

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David H. Kao, Competition Advocate

Date